

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/16/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2200568

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: NAOMI TSEGGAI, ET AL

vs.

DEFENDANT: WESTERN VILLAGE OAKS
ASSOCIATION, ET AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendant Dollar Tree Stores, Inc.’s (“Dollar Tree”) motion for summary judgment is DENIED.

BACKGROUND

This is a personal injury action surrounding a nonfatal drowning. Plaintiffs are Naomi Tseggai (“Naomi”), a minor, and her mother. Plaintiffs allege that on September 8, 2019, Naomi sustained severe and permanent injuries during an incident at a Novato swimming pool. The First Amended Complaint¹ (“FAC”) asserts causes of action for general negligence, premises liability, negligent infliction of emotional distress, and products liability against Defendants Western Oaks Village Association, Atousa Ghanizadeh, and numerous Does.

Plaintiffs filed the FAC on May 31, 2022. In August 2026, Plaintiffs filed a Doe amendment that rendered Dollar Tree Doe No. 71. As a result, the sole cause of action alleged against Dollar Tree is the Fourth Cause of Action, products liability.

Before the Court is Dollar Tree’s motion for summary judgment.

LEGAL STANDARD

Any party may move for summary judgment. (Code of Civ. Proc, § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion “shall be granted if all

¹ All of Dollar Tree’s requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).) The Court has not considered Dollar Tree’s “Response to Plaintiffs’ Additional Material Facts” in connection with this motion. The summary judgment statute does not provide for a “reply separate statement.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 306 [abrogated in unrelated part as stated in *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 853, fn. 12].)

the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th 826, 843.) The object of the summary judgment procedure is “to cut through the parties’ pleadings” to determine whether trial is necessary to resolve the dispute. (*Aguilar, supra*, 25 Cal.4th 826, 843.)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (*Aguilar, supra*, 25 Cal.4th 826, 850; see Evid. Code, § 110.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar, supra*, 25 Cal.4th 826, 851.) When the moving party is a defendant, the initial burden entails showing “that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

A defendant may carry its initial burden at summary judgment by (among other ways) showing that the plaintiff does not have, and cannot reasonably obtain, evidence required to factually support his or her claim. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301-1302.) For a defendant to use this method successfully, the defendant’s evidence must exclude the possibility that the plaintiff may reasonably obtain evidence sufficient to establish the claim. (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1442.) Litigants sometimes do this by presenting the nonmoving plaintiff’s factually devoid responses to comprehensive interrogatories “designed to elicit all the evidence [the] plaintiff[] ha[s] to support” a critical element of his or her claim. (*Ibid.*) The Discovery Act requires parties responding to interrogatories to answer them truthfully and fully. (*Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76.) As a result, one can infer from factually vague responses to these kinds of interrogatories that to the extent evidence is not described in the response, the responding party *does not have* evidence. (*Ibid.*)

Once the moving party has met its initial burden, the burden shifts to the opposing party to “show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subds. (p)(1)-(2).) “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th 826, 845.)

DISCUSSION

The Incident

The basic facts surrounding what happened to Naomi are undisputed. On September 8, 2019, Naomi attended a pool party at a complex in Novato. (UMF Nos. 24-25.) At some point, the host of the party directed the children to exit the pool, and they did. (UMF Nos. 26.) Later, Naomi, unsupervised, returned to the pool area through an open gate. (UMF No. 27.) Both Dollar Tree and Plaintiffs contend that by law, this gate was required to be both self-closing and closed. (*Ibid.*) While still unsupervised, Naomi was approached by another child holding a helium-filled balloon. (UMF No. 28.) The balloon was open so that helium could escape. (UMF No. 29.) The

unidentified child handed Naomi the balloon, inviting her to inhale. (UMF No. 30.) Naomi inhaled the helium and the other child left. (UMF No. 31.) Naomi then slipped underwater. (UMF No. 32.) She was underwater for more than four minutes before an adult noticed her in the water and pulled her out. (*Ibid.*) Naomi was subsequently taken to a hospital in a nonresponsive, catastrophic state due to drowning. (UMF No. 34.)

Products Liability Overview

In California, a defendant may be held liable in a products liability case under theories of strict liability, negligence, or breach of warranty.

California's strict products liability doctrine holds that any participant in the chain of distribution for a product is strictly liable for injuries caused by a defect in the product. (*Peterson v. Superior Court* (1995) 10 Cal.4th 1185, 1188; *Edwards v. A.L. Lease & Co.* (1996) 46 Cal.App.4th 1029, 1033.) "Strict products liability has been applied to three types of product defects:" manufacturing defects, design defects, and warning defects. (Gaab & Reese, Cal. Practice Guide: Claims & Defenses (The Rutter Group 2025) § 7:150; *Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1208.) A warning defect exists where a flawlessly designed and manufactured product is given to a consumer without an accompanying warning of a particular danger, and the absence of the warning creates unreasonable risks to the consumer. (*Cavers v. Cushman Motor Sales, Inc.* (1979) 95 Cal.App.3d 338, 34; *Karlsson, supra*, 140 Cal.App.4th 1202, 1208.) A plaintiff need not establish the existence or breach of a duty to prevail on a strict products liability claim. (*Gonzalez v. Autoliv ASP, Inc.* (2007) 154 Cal.App.4th 780, 793.)

A negligence-based claim for products liability alleges that the defendant failed to exercise reasonable care in its handling of the product, resulting in foreseeable harm. (Gaab & Reese, *supra*, § 7:452.) The plaintiff must establish that the defendant's breach of a legal duty of care rendered the product defective, and the defect caused injury to the plaintiff. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 479.)

To prevail on a breach of warranty-based claim for products liability, the plaintiff must establish that the defendant sold the plaintiff a product, that the defendant warranted the product, that the product did not conform to the warranty, and that such breach of warranty caused the plaintiff to suffer harm. (*Scott v. Metabolife Internat., Inc.* (2004) 115 Cal.App.4th 404, 415.) A plaintiff might allege, for example, that the defendant warranted that the product was safe for its intended purpose, but the product injured the plaintiff while the plaintiff was using it for that purpose. (*Ibid.*)

Plaintiffs' products liability claim is a failure to warn claim based on strict liability, negligence, and breach of warranty theories. (FAC, p. 7.) Plaintiffs contend that the balloon was defective because it failed to warn users of the dangers of inhaling the helium. (See Def.'s Ex. 6 [Response to Special Interrog. No. 1]; Memorandum, p. 7.)

Existence of a Warning Defect

Dollar Tree first argues that the balloon’s failure to warn users of the risks of inhaling helium did not render it defective as a matter of law. This argument relies on the premise that under California law, “ ‘[a] duty to warn or disclose danger arises when an article is or should be known to be dangerous *for its intended use*, either inherently or because of defects.’ ” (Memorandum, p. 15 [quoting *DeLeon v. Commercial Manufacturing & Supply Co.* (1983) 148 Cal.App.3d 336, 343] [emphasis added].) Dollar Tree offers a New York case suggesting that where the use of a product associated with a particular risk is not the intended use of that product, but instead a “foreseeable . . . misuse[.]” the defendant need not warn of it. (*Landrine v. Mego. Corp.* (N.Y. 1983) 464 N.Y.S.2d 516, 518.) Dollar Tree does not dispute that “inhaling the contents of a balloon” is a “foreseeable” risk, but characterizes it as a “foreseeable . . . misuse[.]” (Memorandum, p. 16.) In California, the risks that must be warned against to avoid strict liability based on a failure to warn “include foreseeable dangerous ‘misuses’ of the product.” (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 833; accord *Wright v. Stang Manufacturing Co.* (1997) 54 Cal.App.4th 1218, 1235-1236; *Bunch v. Hoffinger Industries, Inc.* (2004) 123 Cal.App.4th 1278, 1302-1303.)

Proximate Causation

For products liability to lie based on a warning defect, “the plaintiff must prove that the defendant’s failure to warn was a substantial factor in causing his or her injury[.]” even where the plaintiff is pursuing a strict liability theory. (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1604.) “ ‘The substantial factor standard is a relatively broad one, requiring only that the contribution of the individual cause be more than negligible or theoretical.’ Thus, ‘a force which plays only an “infinitesimal” or “theoretical” part in bringing about an injury . . . is not a substantial factor’, but a very minor force that does cause harm is a substantial factor.” (*Bockrath v. Aldrich Chemical Co., Inc.* (1999) 21 Cal.4th 71, 79 [quoting *Rutherford v. Owens-Illinois, Inc.* (1997) 16 Cal.4th 953, 969, 978].) Causation is typically a question of fact, but may be decided as a matter of law where no reasonable person could find the causation requirement satisfied. (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 353.)

Tort law distinguishes between two kinds of causation: causation in fact and proximate causation. That causation in fact is present simply means that the defendant’s conduct was “a necessary antecedent” to the plaintiff’s injury. (*PPG Industries, Inc. v. Transamerica Ins. Co.* (1999) 20 Cal.4th 310, 315.) By contrast, proximate causation refers to the idea that the connection between the defendant’s act and the plaintiff’s injury is sufficient to justify holding the defendant legally responsible. (See *Novak v. Continental Tire North America* (2018) 22 Cal.App.5th 189, 196; *PPG Industries, supra*, 20 Cal.4th 310, 315-316; *Bunch, supra*, 123 Cal.App.4th 1278, 1302.) A plaintiff in a products liability case must prove that the product’s defect was a proximate cause of her injuries. (See *Cronin v. J.B.E. Olson Corp.* (1972) 8 Cal.3d 121, 133-134; but see *Bunch, supra*, 123 Cal.App.4th 1278, 1302 [a products liability plaintiff need not establish that the defendant’s product was the *sole* proximate cause].)

Dollar Tree contends, in brief, that too many other things contributed to Naomi’s accident for its failure to warn to be deemed a proximate cause of Naomi’s injuries. Dollar Tree relies on several cases, which the Court must address in detail.

Shih v. Starbucks Corp. (2020) 53 Cal.App.5th 1063

In *Shih*, a woman sued Starbucks for products liability, asserting that she was burned when her tea spilled. The alleged defect was Starbucks’ serving the hot drink in a cup nested inside another cup, rather than a cup with a sleeve, and with the cup filled to the brim. (53 Cal.App.5th 1063, 1066.) The plaintiff had set the drinks on a table, sat down in a chair at the table, and then attempted, while seated, to bend forward and take a sip from the open cup. While doing so, she tried to push her chair backward a bit, but was overzealous. She lost her balance and grabbed the table to steady herself, which caused the drink to spill. (*Id.* at p. 1055.)

The trial court granted summary judgment to Starbucks, concluding that these alleged defects were not a proximate cause of the plaintiff’s injuries. (*Shih, supra*, 53 Cal.App.5th 1063, 1068.) The appellate court affirmed. While the Second District did reference the attenuated chain of events between the alleged defect and the plaintiff’s burns, it relied primarily on the idea that “ ‘the tortious aspect of the [defendant’s] conduct’ ” – “the alleged defects in the drink” – was not “ ‘of a type that . . . generally increase[s] the risk of [the plaintiff’s] harm.’ ” (*Id.* at p. 1069 [quoting Rest.3d Torts, § 30]; see also *Barenborg v. Sigma Alpha Epsilon Fraternity* (2019) 33 Cal.App.5th 70, 80, fn. 4 [“ ‘coincidental causation – an allegation that some breach created an opportunity for an injury to occur, without increasing the risk of that injury occurring – is insufficient’ to establish liability] [quoting *State Dept. of State Hospitals, supra*, 61 Cal.4th 339, 359].) As the appellate court put it: “Although it is foreseeable that a customer could lose his or her balance while seated at or rising from a table, such an event is not ‘within the scope of the risk’ created by a restaurant’s decision to serve a hot beverage that is filled to the brim or that does not have a sleeve. Starbucks’ conduct in serving Shih a full cup of hot tea without a cup sleeve may have ‘set in motion’ the particular ‘series of events’ that led to Shih spilling her drink on herself[.] . . . But neither the failure to use a cup sleeve nor the level to which a coffeehouse employee fills a hot drink ‘generally increase[s] the risk’ a customer will accidentally lose her balance while attempting to execute the kind of unorthodox drinking maneuver Shih performed here[.]” (*Shih, supra*, 53 Cal.App.5th 1063, 1070 [quoting *Novak, supra*, 22 Cal.App.5th 189, 196-197] [internal citations omitted].)

Wawanesa Mut. Ins. Co. v. Matlock (1997) 60 Cal.App.4th 583

In *Wawanesa*, a 17-year-old boy supplied cigarettes to a 15-year-old friend. (60 Cal.App.4th 583, 585.) The boys then trespassed at a private storage facility, where they climbed a pile of wood along with younger friends. The 17-year-old “began to tease the younger boys, telling them the logs were going to fall.” (*Ibid.*) The boys began to run and jostled the 15-year-old, who dropped his lit cigarette, starting a fire. An insurance company sued the 17-year-old and his father for contribution on ordinary negligence and other theories. (*Id.* at p. 586.)

The Fourth District held that there was no basis to hold the 17-year-old liable for the damage because “the concatenation between [the 17-year-old’s] initial act of giving [the 15-year-old] a packet of cigarettes and the later fire is simply too attenuated to show the fire was *reasonably* within the scope of the risk created by the initial act.” (*Wawanesa, supra*, 60 Cal.App.4th 583, 588 [emphasis in original].) Although the Fourth District did refer to “the Rube Goldbergesque system of fortuitous linkages necessary to get from A (giving the packet of cigarettes to [the 15-year-old]) to B (the damage caused by the fire)” (*ibid.*), the basis for the ruling was not simply too many other contributing events occurred between A and B to consider A proximate cause of B. It was that “fires are not within the risks one foreseeably incurs by

teasing youngsters, even youngsters in the general vicinity of someone smoking a cigarette. . . . Someone who gives someone else a cigarette – even if the act of giving is itself unlawful by virtue of the receiver’s age – hardly can become an insurer of any property which the cigarette may by some happenstance ignite. There must be some reason to conclude that the act of giving the cigarette creates a *fire hazard*.” (*Id.* at p. 589 [emphasis in original].)

Modisette v. Apple, Inc. (2018) 30 Cal.App.5th 136

In *Modisette*, a couple sued Apple for products liability when a man using FaceTime while driving on the highway caused a car accident that killed their five-year-old daughter. (30 Cal.App.5th 136, 140.) The plaintiffs’ theory was that Apple was culpable for failing to include in the iPhone a feature that would lock the user out of FaceTime while driving a car, technology that Apple had developed and patented by the time of the crash. (*Id.* at pp. 140-141.)

The Sixth District dismissed the complaint at the demurrer stage based on a finding that as a matter of law, the plaintiffs could not “establish that Apple’s design of the iPhone constituted a proximate cause of the injuries they suffered[.]” (30 Cal.App.5th 136, 139.) *Modisette* reasoned that the obvious cause of the Modisette family’s tragedy was the reckless driver who “willingly diverted his attention from the highway.” (*Id.* at p. 154.) The Sixth District compared the facts to those of another products liability case against Apple out of a federal court in Texas, where the court opined that Apple’s design “ ‘did nothing more than create the condition that made Plaintiffs’ injuries possible.’ ” (*Ibid.* [quoting *Meador v. Apple, Inc.* (E.D. Tex. Aug. 16, 2016, Civ. A. No. 6:15-cv-715 [2016 WL 7665863], *4].)

Steinle v. U.S. (2021) 17 F.4th 819

In *Steinle*, the Ninth Circuit, applying California’s state law of causation, sustained a summary judgment in favor of the defendant on the basis that the connection between the defendant’s conduct and the plaintiff’s injury was too remote to support proximate causation as a matter of law. (17 F.4th 819, 821.) *Steinle* concerned the killing of Kathryn Steinle near San Francisco’s Embarcadero in 2015. (*Ibid.*) The circumstances that resulted in Ms. Steinle’s death were as follows: John Woychowski, an employee of the United States Bureau of Land Management (“BLM”), parked his personal vehicle on the street near the Embarcadero while having dinner at a restaurant with his family. He left luggage and other items in the car, visible to passersby. Among these items was a backpack containing a loaded, BLM-issued firearm, which was not equipped with its BLM-issued trigger lock. While the Woychowski family was at the restaurant, a thief smashed the car’s windows and stole the backpack. The backpack was found, but the gun was missing. Four days later, about half a mile away from where Woychowski’s car had been parked, Juan Francisco Lopez-Sanchez found the gun wrapped in cloth near a bench. He picked it up and fired it. The bullet ricocheted off the ground, striking and killing Kathryn Steinle as she walked with her father near Pier 14. (*Ibid.*)

The Ninth District described this chain of events as a “ ‘Rube Goldbergesque system of fortuitous linkages’ ” (*Steinle, supra*, 17 F.4th 819, 822 [quoting *Wawanesa, supra*, 60 Cal.App.4th 583, 588]) in which “[s]everal events . . . intervened” between the allegedly negligent conduct (Woychowski leaving a loaded weapon in an unattended vehicle parked in a tourist-heavy part of San Francisco) and the injury. (*Id.* at p. 822.) There was “ ‘simply too much

fortuity in the chain’ ” of events (*id.* at p. 823 [quoting *Wawanesa, supra*, 60 Cal.App.4th 583, 589]) for the United States, Woychowski’s employer, to bear legal responsibility for Ms. Steinle’s death. “Ms. Steinle’s death ha[d] only a tenuous connection to Woychowski’s storage of the pistol[.] . . . [A]t least one criminal act (the theft) and at least one accident (the bullet ricocheting[]) occurred after Woychowski left the pistol in his vehicle.” (*Id.* at p. 824.)

Analysis

Dollar Tree’s attempt to draw parallels between this case and *Shih* and *Wawanesa* fails to recognize that the critical factor in the latter two cases was the mismatch between the danger naturally associated with the defendant’s conduct and the nature of the plaintiff’s injuries. The basis for these rulings was that the courts considered the risks associated with the defendant’s conduct to be *qualitatively different* than the dangers that materialized and injured the plaintiffs. To the extent *Steinle* suggests otherwise, the Court respectfully disagrees. It finds the California courts’ explanations of their own reasoning in these cases more persuasive than the Ninth Circuit’s account of its understanding of that reasoning.

The Second District, which decided *Shih* in 2020, revisited the case last year. In *Lorenzo v. Calex Engineering, Inc.* (2025) 110 Cal.App.5th 49, a couple sued a contractor who worked on a construction project in Los Angeles. (110 Cal.App.5th 49, 54.) The contractor had represented to the city that all dump trucks associated with the project would be staged on site, with no more than 20 dump trucks there at a time. (*Ibid.*) The city “granted an excavation permit on that basis, with the condition that staging be on-site only.” (*Ibid.*) “There was evidence that public safety was an important factor” in the City’s approval. (*Ibid.*)

The defendants set up an unpermitted staging area miles off-site and directed 90 dump trucks there. (*Lorenzo, supra*, 110 Cal.App.5th 49, 54.) While traveling to that unpermitted staging area, a dump truck driver struck and killed the plaintiffs’ two daughters. (*Ibid.*) Plaintiffs’ theory was that “defendants’ decision to establish an unpermitted staging area and direct 90 dump trucks to it was negligent, and led to the death of the two girls.” (*Ibid.*)

The trial court granted summary judgment in favor of the defendants. (*Lorenzo, supra*, 110 Cal.App.5th 49, 54.) The Second District reversed, held that there was a triable issue as to whether the defendants’ conduct had proximately caused the girls’ deaths. (*Id.* at p. 75.) In doing so, it explicitly emphasized the critical role of the connection between the nature of the risk and the nature of the injury in *Shih* and *Wawanesa*: “The question in *Shih* and *Wawanesa* was whether the defendant’s conduct reasonably increased the risk of the plaintiff’s particular harm. In both cases, the appellate court concluded the answer was no – one would not reasonably expect serving hot tea in a sleeveless cup would cause someone to slip and fall, nor that giving someone a cigarette would lead to a destructive fire.” (*Id.* at p. 74.)

The Second District reached “the opposite conclusion” in *Lorenzo*:

“[D]efendants, by establishing an unpermitted staging area, denied the City an opportunity to assess the safety of the hauling plan, including staging, and implement additional measures if needed to protect the public. . . . [T]he record does not disclose whether, had defendants sought City approval of the staging

site, the City's safety evaluation would have included . . . the site of the accident. The record does not foreclose the possibility—as noted, there was evidence the line of trucks at times extended down Broadway past 37th Street, which supports an inference a safety evaluation of the staging area would include that location. It is also a reasonable inference the City's evaluation of the staging area would include assessing whether the streets surrounding it safely could accommodate large construction vehicles moving through them. . . . [I]t is not speculative that after conducting that evaluation, the City would have considered implementing measures to reduce such a safety risk at [the accident site].

There remain triable issues, therefore, as to whether defendants' violation of their permit by using an unauthorized staging area increased the very risk the permitting process was intended to avoid, in this case a construction vehicle striking and killing two pedestrians. Unlike in *Shih* and *Wawanesa*, we cannot say the link between defendants' conduct and plaintiffs' harm was so remote or attenuated to absolve defendants of liability as a matter of law. Rather, the question of proximate causation is within the province of the finder of fact.” (110 Cal.App.5th 49, 74-75.)

In this case, Plaintiffs contend that the balloon's failure to include a warning about the dangers of inhaling helium from the balloon – i.e., that doing so may result in losing consciousness – increased the risk that Naomi would inhale helium, pass out, and injure herself. The logical connection between Dollar Tree's alleged conduct and Plaintiffs' injury is clear in a way that cannot be said of *Shih* or *Wawanesa*. The failure to warn that a particular use of a product may result in unconsciousness is dangerous, if at all, because losing consciousness deprives the person of their faculties, which places them at risk of injury depending on the circumstances of the episode. If a person loses consciousness while she is standing on or near a hard surface, she may sustain a serious head injury from the resulting fall. If she loses consciousness while she is driving, she will lose control of the vehicle and may injure herself or others in a car accident. If she is in a body of water, she may slip under and be unable to save herself.

Critically, Dollar Tree has not presented any evidence that the lack of a warning would not increase the risk of fainting-associated injury, nor that the cause of Naomi's loss of consciousness was not her inhaling the helium from the balloon. Its argument that Plaintiffs' discovery responses show that Plaintiff cannot establish causation is unavailing, as discussed below.

On the arguments presented, the Court is not persuaded that there is no proximate causation here as a matter of law. This is an issue for a jury.

Discovery Responses

As discussed above, a defendant need not affirmatively negate an element of the plaintiff's cause of action to carry its initial burden at summary judgment. It may do so by showing that the plaintiff does not have, and cannot reasonably obtain, evidence required to support her claims, such that one or more required elements “cannot be established[.]” (Code Civ. Proc., § 437c, subd. (p)(2); *Chavez, supra*, 207 Cal.App.4th 1283, 1301-1302.) Dollar Tree attempts this method, contending that Plaintiffs' discovery responses establish that they cannot

prove “duty, breach of duty or causation.” (Memorandum, p. 20.) This argument is based on Plaintiffs’ Amended Response Nos. 1, 7, and 8 to Dollar Tree’s Special Interrogatories (Set One). (See UMF Nos. 35-39 [evidence cited]; Cefalu Dec., ¶ 4; Def.’s Ex. 6; Memorandum, pp. 12-13.)

Dollar Tree appears to believe a defendant employs this method successfully by showing that a plaintiff’s discovery responses do not constitute evidence sufficient to meet the plaintiff-side burden on a summary judgment motion. (See Memorandum, pp. 21-22.) This reveals a misunderstanding of this method of meeting the initial burden on a defense motion for summary judgment. At this stage in its analysis, the Court is concerned with whether *Dollar Tree* can meet its burden. Plaintiffs are not required to establish or demonstrate *anything*, through their discovery responses or otherwise, until Dollar Tree does so. (See *Y.K.A. Industries Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 353 [“The moving party must satisfy his or her initial burden before the opposing party must controvert anything.”].)

The question before the Court is whether the discovery responses at issue support an inference that Plaintiffs do not have evidence necessary to support their claims and cannot reasonably obtain it. (See *Weber, supra*, 143 Cal.App.4th 1433, 1438, 1442; see also *Scheiding, supra*, 69 Cal.App.4th 64, 83.) In *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 575, the plaintiffs were asked in discovery to “state all facts” supporting their claim that the defendant had committed fraud. (*Scheiding, supra*, 69 Cal.App.4th 64, 73-74 [describing *Union Bank, supra*, 31 Cal.App.4th 575, 578].) They responded, in summary fashion, that they “ ‘believe[d]’ ” the defendant had acted fraudulently as alleged and reserved the right to further respond later. (*Ibid.*) Based on certain features of the Discovery Act, the court could presume that this was all the plaintiffs had to say regarding the factual basis for their claims. (*Id.* at p. 76.) Critically, the plaintiffs’ responses *did not actually contain any facts* – they merely stated their belief that the defendant was liable, without specifying anything about how or why, and suggested that facts and evidence supporting that liability would eventually be revealed. (*Id.* at p. 78.) This “category of ‘empty’ discovery responses can be enough by itself to support summary judgment.” (*Ibid.*) It is from the fact that the discovery responses are *devoid of facts* that the court can infer that the plaintiff *has no facts* and thus, necessarily, no evidence. (*Id.* at p. 79.)

Here, the interrogatories at issue asked Plaintiffs to state all facts upon which they claim that Dollar Tree is liable for any injuries, owed any duty, or breached any duty. (Def.’s Ex. 6.) Plaintiffs responded by clearly setting forth the facts upon which they seek to hold Dollar Tree liable. They described the events at the pool party; stated that Dollar Tree manufactured, distributed, and/or sold the balloon; that “acute health effects may occur immediately or shortly after exposure to helium[,] including suffocation from lack of oxygen and lose [sic] of consciousness”; that Dollar Tree knew this; that the balloon did not come with an adequate warning of the dangers and risks associated with inhaling helium; that this created a substantial danger that was unknown to consumers; and that the lack of a warning was a substantial factor in Naomi’s inhaling helium and subsequently drowning. (*Ibid.*) These responses do not come close to supporting an inference that Plaintiffs do not have, and cannot obtain, evidence necessary to support their claims against Dollar Tree.

Conclusion

The Court concludes that Dollar Tree has not met its initial burden. As such, it does not have occasion to reach Plaintiffs' showing in opposition to the motion and so does not rule on Dollar Tree's objections to Plaintiffs' evidence. (See Code Civ. Proc., § 437c, subd. (q).) The motion is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
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NATURE OF PROCEEDINGS: MOTION – AMEND COMPLAINT

RULING

This matter was removed to federal court on May 6, 2024. The clerk is directed to administratively close the file.

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Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>